

Whangarei District Council Meeting

Supplementary Agenda

Date: Thursday, 22 May, 2025

Time: 9:00 am

Location: Civic Centre, Te Iwitihi, 9 Rust Avenue

Elected Members: His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

7. Decision Reports / Whakatau Rīpoata

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8. Public Excluded Business / Rāhui Tangata

8.5 CCTO Update Additional Information

7.8 Kamo Road T2 Lane

Meeting: Whangārei District Council

Date of meeting: 22 May 2025

Reporting officer: Jim Sephton, Transport & Community Infrastructure General Manager
 Jeff Devine, Transportation Manager
 Reiner Mussle, Health & Bylaws Manager

1 Purpose / Te Kaupapa

To seek Council's approval to increase the Contract Value for additional resource needed to implement the monitoring, education and enforcement Council's new Special Vehicle Lane (SVL) for Bus Priority and T2 vehicles on Kamo Road and Bank Street.

2 Recommendations / Whakataunga

That Council:

1. Notes that enforcement of the Kamo Road and Bank Street Special Vehicle Lane will be enforced through a combination of Cameras and through Council's existing Regulatory Services contract with Armourguard.
2. Notes that the additional operating costs (associated with enforcement) are intended to be offset through infringement revenue (including parking and misuse of the T2 Lane) rather than rate funded.
3. Notes that two additional Parking Wardens, one additional Parking Administrator and two additional vehicles at a total annual value of \$233,396.37 will be incorporated within the Armourguard contract.
4. Notes that these additional services and costs will run concurrently with the current Regulatory Services contract term, set to end on 30 June 2027.
5. Notes that Enforcement service requirements across the district will be incorporated into the new Contract which will be publicly tendered.
6. Notes that these new costs will start on 1 July 2025 (at the earliest), and end on 30 June 2027 and therefore will add a maximum of \$466,792.74 (over that 24-month period) to the current total contract value.
7. Approves a variation to the existing Regulatory Services contract with Armourguard [CON 22088] of \$466,792.74 increasing the current approved 5-year contract value from \$12,445,322 to \$12,912,115.
8. Approves additional operating budget for the required additional parking enforcement staff of up to \$466,792.74, noting that this is budgeted to be offset by additional income.

9. Delegates the Chief Executive to negotiate the terms of the variation to the increased contract value and, subject to final agreement by Armourguard and finalise/approve the changes.

3 Background / Horopaki

Kamo Road & Bank Street form one of our highest volume arterials on the local road network with over 3,000 vehicles using it in the morning peak. The route is congested with vehicle and bus passengers experiencing variable journey times and delays.

The Kamo catchment is identified as one of the highest population growth areas in the district currently, and that trend is predicted to continue as per the Whangarei District Growth Strategy (Sept 2021). This document identifies “more frequent and comprehensive bus services” as being a part of the Kamo catchments growth strategy plan.

Whangarei District Council identified three arterial routes that would benefit from bus priority Lanes in the CityLink Improvement Programme Single Stage Business Case. Kamo Road was the first priority due to the urgent need to increase capacity on the corridor, and the low investment required due to existing generous road widths (kerb to kerb).

This project is being delivered in close collaboration with Northland Regional Council who are responsible for the provision of bus services. The NRC LTP includes funding for an increase in bus frequency which will be introduced later this year as part of the implementation of the priority lane, (special vehicle lane).

The special vehicle lane is expected to improve journey time reliability for bus passengers which removes a major infrastructure obstacle to the success of bus services on the Kamo / Bank arterial. It is recognized that there are other obstacles that remain to attract people to public transport use (including security, park and ride etc). Increasing public transport use (as well as higher vehicle occupancy) increases the productivity of the corridor – i.e. we can get more people into town in the morning peak.

Due to generous existing road widths, we were able to modify the road layout throughout the length to incorporate an additional southbound lane without significant kerb relocations, which can be very costly. For the most part, parking is removed in the southbound direction during the transit lane operation period (7-9am), and available for parking again outside the operation period. The project has ensured that where, as a result of the changes, businesses will lose on street parking during the transit lane operation period, we have created new parking on adjacent side streets.

Due to the additional lane provided, there are now three lanes of traffic during the morning peak, at which point it becomes unsafe to allow pedestrians to cross the road utilising zebra crossings or pedestrian refuges. The project includes 5 signalised crossings to provide safe crossing points for the changed road environment.

This also allows the signalised crossings to be slaved to adjacent traffic intersections so that efficiency of the network can be prioritised at important peak times. This is something that was not possible with uncontrolled (zebra) crossings.

One of the other benefits of the signalised crossings is that they have been designed to accommodate the bus stop rationalisation element of the project, which optimised the bus stop spacing throughout the corridor, and the signalised crossings have gated bus stops on either side to allow bus users to cross the road safely following the completion of their bus

journey. CCTV for the bus stops has also been installed utilising the signalised crossings overhead arms.

There have been cost efficiencies by installing the enforcement zones and associated cameras within the immediate proximity of the signalised crossings also. This has saved in terms of provision of power and fibre, which was required for the signals, and is a costly element for any infrastructure installation.

3.1 Funding

Capital Funding

The Kamo Priority Lane project was put up for funding as part of the Transport Choices Programme funding application in December 2022. The project was accepted and granted 100% central funding to complete the project as part of a package of multi modal and Public Transport orientated projects. The programme was granted implementation funding in December 2023 and construction commenced for this project in November 2024.

There is \$2,356,000 allocated within the Transport Choices budget for the project.

There is an additional \$500,000 local share that was provided for at the Council meeting on the 12th of December 2024, taking the project allocation to \$2,856,000. This is allocated to the 'Whangarei City Bus Package' and enabled the completion of both stages of the corridor.

Operational Funding

The operational costs associated with managing the T2 lane includes enforcement of the clearway (the focus of this paper), monitoring vehicle occupancy of the T2 lane, handling data and processing infringement notices.

The operating costs are intended to be offset by additional revenue through infringements. This is described further below.

3.2 Implementation

The corridor has been implemented in a number of stages:

1. Removal and replacement of existing line marking and signage, to implement the new special vehicle lane, including provision of additional parking arrangements on side streets (complete)
2. Removal of existing zebra crossings and pedestrian refuges, and installation of new signalised crossings (underway – executed through current maintenance contract)
3. Enforcement:
 - a. Purchase and installation of new Special Vehicle Lane enforcement cameras (known as Vehicle Occupancy Detection - VOD cameras)
 - b. Enforcement Lane Cameras (May Infrastructure Committee Meeting)
 - c. Clearway enforcement (this paper) and
 - d. Legal / Bylaw instruments (June Council Meeting)
4. Increased bus services – to increase to meet demand mid-year following soft opening.

The physical implementation will be complete by the end of June 2025. The next 'Transition Phase' will see the lane become operational with enforcement (of both the clearway and T2 lane) introduced.

3.3 Monitoring

In order to obtain NZTA funding for our Transport Choices programme, we were required to complete a Monitoring and Evaluation plan and have it approved by the Agency. This identified the outcomes that we were seeking to obtain from the infrastructure investment with discrete measurable outcomes. Before data has been collected for this project, among others on the programme, and these will be matched with post completion data to help verify whether we achieved our intended goals. We are proposing to have this analysis complete by December 2025, after this asset and the Rose Street Bus hub upgrade have had time to realise their potential. In particular for this project, that NRC have had the opportunity to ramp up bus numbers to meet increased demand.

4 Discussion / Whakawhiti kōrero

Enforcement will be critical to the success of this infrastructure. The bus priority and T2 lane will be the first of its kind in the Whangārei district and will take some getting used to by residents and ratepayers. While the project has no wish whatsoever to generate income and/or frustration for drivers, enforcement must be able to be carried out in order to clear the lane and ensure it can deliver on its promise to provide efficiency in the morning peak.

Requirements relating to enforcement are covered below, before considering the resourcing and contract changes required to implement these.

Please note, at the time of writing additional capacity was still under discussion with Armourguard, with the item being included within confidential pending the outcome of those discussions. It has since been confirmed that this information can be released, thereby allowing this item to be considered in public. There are no other changes to this item as originally provided to Councillors.

4.1 Enforcement

Enforceability will hinge on detailed Council resolutions made under the Local Government Act 1974 and Council's Parking and Traffic Bylaw based on accurate and comprehensive as-built drawings of the traffic control devices (lane markings, bus stops, car parks). At the time of writing, these drawings are still being developed.

Staff will therefore present a decision report at the Council meeting on 26 June 2025 for Council to give legal effect to the various components of the priority lane (clearway, T2 lane, bus stops) and thus ensure its enforceability.

The enforcement will be made up of two elements. The first is clearway enforcement. This will be an activity primarily to clear vehicles before 7am in the morning, to ensure the infrastructure is clear and available for buses and T2 vehicles. The T2 Lane is only active between 7 and 9am, after which it reverts back to parking.

This enforcement activity will be carried out manually by Armourguard staff in the period up to and immediately after 7am each morning. This paper makes provision for contracted staff to carry out this activity (they will require the support of Council's towing contractor to complete their task in some instances).

The second enforcement activity is ensuring that only vehicles that are permitted to use the lane are doing so during the lane's operation hours of 7-9am. This activity will be carried out by way of special enforcement lane cameras that are to be purchased from CSL Infrastructure, who have developed the technology on the Auckland Transport (AT) network. The funding for this activity is included within the current budget funded through NZTA. AT

will process the evidence packages generated by the cameras and infringement packages will be provided to Armourguard, as our warranted officers to issue.

Underpinning the enforcement and operations of the corridor is the system integration within our legal, technology and information frameworks. Council will require new holding servers and ongoing storage for the evidence packages. ICT are working on the design / costings as part of the project, the funding of which needs to be offset by revenue from enforcement. Additional outbound and inbound data connections from Auckland Transport are required as well as integration with Tech One to allow the infringement to be issued. There will be on-going costs for storage and IT infrastructure.

New network infrastructure is required for a secure connection from the vehicle offense tracking devices (VOD), through to Auckland Transport's Evidence Processing Service, and back for Armourguard to record and issue infringements from TechOne.

The corridor will not be completely operational until all these components are in place. Although there is a hard deadline to complete the physical works before the end of June (to meet funding requirements) the timeline for enforcement activities will be dependent on having all the elements in place.

This paper seeks approval for an increase in contract value to meet additional resourcing requirements. It is required now so that mobilization of resources can be executed ahead of the implementation of the T2 lane.

4.2 Proposed resourcing and contract changes

Council's current Regulatory Services contract with Armourguard was approved and entered into on 1 July 2022 and will end on 30 June 2027. Through that contract Armourguard currently provides six (6) Parking Wardens who are at their maximum workload capacity with regards to complying with Council preset operational monitoring and enforcement plan requirements. In addition to proactively monitoring parking behaviour and attending to complaints, these six Parking Wardens issue on average 24,000 infringements per year. Furthermore, due to operational requirements, most work is between the hours of 9.00am and 6.00pm.

All infringements issued by the Wardens must be manually loaded into Council's Tech1 system by the two (2) existing Armourguard contracted Parking Administrators generally working hours of 8.00am to 5.00pm. They are also responsible for extracting Motorcheck data, issuing infringement reminder notices and ensuring that unpaid infringements are handed over to the courts. In addition, they handle all enquiries and disputed infringements.

As both teams are at maximum workload capacity, neither have the capacity to handle additional tasks. Furthermore, the new Bus/T2 priority bus lane is required to be monitored and enforced between the hours of 6.30am (starting at 7.00am) and 9.00am and thus prior to the start time of both teams which means that this new work area can't be facilitated by the existing teams.

In summary, monitoring and enforcement of the Bus/T2 priority lane requires additional Parking Warden and Administrator resources.

There have also been discussions with local service providers with regards to new parking technology, which could reduce the pressure on the overall enforcement contract but would need to be assessed via a cost benefit review once more is understood.

4.3 Financial/budget considerations

Conservative estimates based on previous years data suggest that two additional full-time Parking Wardens could generate approximately \$342,000 in annual infringement income, while also supporting improved compliance with Council's bylaw and related legislation. The total annual cost for these additional resources is estimated at \$233,396.37 meaning the forecasted income is predicted to exceed costs by over \$100,000.

This estimate is based on a 6-hour shift model and does not include potential revenue from Special Vehicle Lane enforcement, or the expected increase in income following the October 2024 parking infringement fee rise.

In summary, the proposed increase is anticipated to be fully offset by additional revenue, with a positive impact on Council's operating costs.

The table below follows the contracts annual and total budget comparison for each year since the start of the contract, with actuals/years outside of the variation period shaded blue:

Year	Current Contract Value	Following Variation
22-23	\$ 2,272,583	\$ 2,272,583
23-24	\$ 2,327,390	\$ 2,327,390
24-25	\$2,594,503 (prorated for the 8 months since the Nov 24 variation)	\$2,594,503 (new parking costs will only apply as of 1 July 2025)
25-26	\$ 2,625,423	\$ 2,858,819
26-27	\$ 2,625,423	\$ 2,858,819
Total	\$12,445,322	\$ 12,912,114

In the event that the recommendations included within this agenda are approved, the 2025-26 Annual Plan budget will be adjusted to include the additional Armourguard contract costs (as an operational expense) as well as the additional anticipated infringement revenue.

4.4 Options

Council has two options:

Option 1 – Approve Contract Variation

Approve a variation to the existing Regulatory Services contract, increasing the contract value by \$233,396.37 per annum to fund additional parking enforcement staff and vehicles required for the T2/Bus Priority Lane.

While this represents a budget increase, it is expected to be fully offset by additional infringement revenue, resulting in no net cost to Council and a potential positive variance to operating budgets.

Option 2 – Do Not Approve Contract Variation

Do not proceed with the variation. This would mean no enforcement of the Bus/T2 Priority Lane, significantly reducing its effectiveness and risking non-compliance, congestion, and failure to deliver the intended transport outcomes.

4.5 Risks

Choosing not to fund additional parking enforcement resources means that the new Special Vehicle Lane will not be monitored or enforced, which will likely result in the lane being misused and failing to achieve the intended benefit.

There is a minor risk that the two additional Parking Wardens will fail to issue an adequate number of infringements or infringements of a lower value during the remaining 6 hours of their day when they are not attending the Special Vehicle Lane, which may result in lower than estimated infringement income to cover costs. However, the fact that we have not incorporated predictions around any income generated from the Enforcement Cameras will offset this risk.

This risk may also occur where recoverability of the infringement can be delayed when overdue charges are lodged with the Court and follow the Ministry of Justice collection process.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy. The public will be informed of enforcement relating to the T2 lanes as part of broader project communications.

7.9 Northland Event Centre Roof Replacement Working Group

Meeting: Whangarei District Council
Date of meeting: 22 May 2025
Reporting officer: Jim Sephton (General Manager, Transport and Community Infrastructure)

1 Purpose / Te Kaupapa

To seek Council approval to form a Project Working Group to support the design and construction of the new Stadium Roof.

2 Recommendations / Whakataunga

That the Council:

1. Agrees to the formation of a Project Working Group to support the design and construction of the Northland Event Centre Roof Replacement
2. Agrees to following membership proposed by the Mayor
 - a. Phil Halse
 - b. Deborah Harding
 - c. Gavin Benney
3. Agrees that the Working Group will develop the Terms of Reference for consideration of adoption at the August 2025 meeting of Council

3 Background / Horopaki

A briefing on the Northland Event Centre (NECT) Roof Replacement was held at Semenof Stadium on the 14th May.

The Concept Design was discussed as well as the challenges of managing scope and budget given the priority to provide programme certainty to the NECT Trust.

4 Discussion / Whakawhiti kōrero

At the Briefing it was acknowledged that the Project Team have been working closely with NECT Stakeholders and that there would be benefit in a closer involvement of Elected Members.

The Mayor has subsequently requested that a Project Working Group be established including Councillors Halse, Harding and Benney who have previous experience from the Stadium.

The Working Group will not have decision making powers but will work alongside the Project Team and Other Stakeholders to guide and advise on key decisions.

Matters of interest will include

- Delivering the core scope within budget
- Providing programme confidence

4.1 Financial/budget considerations

There are no financial implications from this decision

4.2 Policy and planning implications

There are no policy or planning implications from this decision

4.3 Options

- Option 1 Form a Working Group
- Option 2 Do not form a Working Group

Option 1 is recommended

4.4 Risks

The risk of not having a Working Group is that Council will only be aware of Project Status through Briefings and Operational Reports at the Community Committee. Formal decisions of Council will be at the approval of the Procurement Plan and the Award of Contract.

The benefit of a Working Group is that it will be able to provide the Project Team with an appropriate level of guidance and advice as well as provide other Elected Members with confidence that the decisions made in the process have been well considered.

The risk of having a Working Group is that it may blur Governance and Operational responsibilities. This can be mitigated through the development of Terms of Reference which should be adopted by full Council.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy. The public will be informed via agenda publication on the website.

6 Attachments / Ngā Tāpiritanga

None

Northland Exhibition Centre Roof Replacement – Working Group - Terms of Reference

Membership

Chairperson: To be determined

Members: To be determined

Meetings: At least six monthly otherwise as required

Quorum: 3

Purpose

To provide support and guidance to the Project Team through the design and construction of the Northland Event Centre Roof Replacement Project

Key responsibilities include:

- Provide Council perspective on key decisions – particularly with regard to Scope and Budget
- Advise on implications of decisions at key stages
- Support the Project Team

Conflicts of Interest

At the start of each meeting, members are to declare actual, potential or perceived conflicts of interest relating to the matters on the agenda.

Members are required to declare actual, potential or perceived conflicts of interest relating to the matters arising from within discussion.

Delegations

The Working Group has no delegated authority.

Term of the Working Group

For the remainder of the project until Practical Completion. Noted that the representatives will be revisited following the 2022-2025 term of Council.

Guiding Principles

1. Respect and seek to understand different opinions
2. Approach issues with an open mind, be willing to change views
3. Aim to reconcile views, making concessions where possible
4. Respect the pressures faced by the team and stakeholders

DRAFT

RESOLUTION TO EXCLUDE THE PUBLIC**Move/Second**

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered	Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
8.1 Confidential minutes of the Whangarei District Council meeting held on 29 April 2025	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
8.2 Civic Honours Selection Committee - Approval of Minutes and Recommendations 2025		
8.3 CCTO Update May 2025		
8.4 Kamo Rd T2 Lane – To be Withdrawn		
8.5 CCTO Update May 2025 – Additional information		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To protect the privacy of natural persons including that of a deceased person.	S7(2)(a)
1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations). To prevent the disclosure or use of official information for improper gain or improper advantage.	S7(2)(i) S7(2)(j)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	S7(2)(i)

1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations). To prevent the disclosure or use of official information for improper gain or improper advantage.	S7(2)(i) S7(2)(j)
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Resolution to allow members of the public to remain

If the committee wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

Move/Second

"That _____ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item _____.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because _____.